



**INFORMATION SECURITY AND
PROCESSING AGREEMENT**
“the Agreement

FSP No. 10287

1. INTRODUCTION

A Responsible Party utilising the services of an Operator or "Third-Party Service Provider" to process Personal Information is required to complying with Sections 20 and 21 of the Protection of Personal Information Act ("POPIA"). These two sections state -

20. An operator or anyone processing personal information on behalf of a responsible party or an operator, must—

- a) process such information only with the knowledge or authorisation of the responsible party; and*
- b) treat personal information which comes to their knowledge as confidential and must not disclose it, unless required by law or in the course of the proper performance of their duties.*

21. (1) A responsible party must, in terms of a written contract between the responsible party and the operator, ensure that the operator which processes personal information for the responsible party establishes and maintains the security measures referred to in section 19.

(2) The operator must notify the responsible party immediately where there are reasonable grounds to believe that the personal information of a data subject has been accessed or acquired by any unauthorised person.

Section 21(1) requires **Ambledown Financial Services (Pty) Ltd and/or Unity Health (a division of Ambledown), Reg No: 2004/006271/07** to enter into a written agreement with an Operator that processes personal information for or on behalf of **Ambledown Financial Services (Pty) Ltd and/or Unity Health (a division of Ambledown)** and to ensure that such Operators establish and maintain the security measures required in terms of Section 19.

2. DEFINITIONS

2.1 Personal Information

Personal information is any information that can be used to reveal a person's identity. Personal information relates to an identifiable, living, natural person, and where applicable, an identifiable, existing juristic person (such as a company), including, but not limited to information concerning:

- race, gender, pregnancy, marital status, national or ethnic origin, colour, sexual orientation, age, physical or mental health, disability, religion, conscience, belief, culture, language and birth of a person;
- information relating to the education or the medical, financial, criminal or employment history of the person;
- any identifying number, symbol, email address, physical address, telephone number, location information, online identifier or other particular assignment to the person;
- the biometric information of the person;
- the personal opinions, views or preferences of the person;
- correspondence sent by the person that is implicitly or explicitly of a private or confidential nature or further correspondence that would reveal the contents of the original correspondence;
- the views or opinions of another individual about the person;
- the name of the person if it appears with other personal information relating to the person or if the disclosure of the name itself would reveal information about the person.

2.2 Data Subject

This refers to the natural or juristic person to whom personal information relates, such as an individual member or a company that supplies **Unity Health** with products or other goods.

2.3 Responsible Party

The responsible party is the entity that needs the personal information for a particular reason and determines the purpose of and means for Processing the Personal Information. For the purposes of this Agreement, the Responsible Party shall mean **Ambledown Financial Services (Pty) Ltd and/or Unity Health (a division of Ambledown), Reg No: 2004/006271/07.**

2.4 Operator

An operator means a person who processes personal information for a Responsible Party in terms of a contract or mandate, without coming under the direct authority of that party. For the purposes of this Agreement, the Operator shall mean **Sautech (Pty) Ltd, Registration number: 2003/006814/07.**

2.5 Parties

Means the Responsible Party and the Operator.

2.6 Processing

The act of processing information includes any activity or any set of operations, whether or not by automatic means, concerning personal information and includes:

- the collection, receipt, recording, organisation, collation, storage, updating or modification, retrieval, alteration, consultation or use;
- dissemination by means of transmission, distribution or making available in any other form; or
- merging, linking, as well as any restriction, degradation, erasure or destruction of information.

2.7 Service Agreement

Means means the agreement entered into between the Responsible Party and the Operator in terms of which the Operator provides services to the Responsible Party.

3. OPERATOR'S UNDERTAKING

It is hereby agreed that:

- The Operator will only Process Personal Information solely for the purposes and to the extent described in the Service Agreement or on the specific written instructions of the Responsible Party.
- In performing its obligations under the Service Agreement, the Operator will comply with POPIA and not cause the Responsible Party to breach any obligation under POPIA.

- The Operator will treat Personal Information as confidential and shall not share, transfer, disclose or otherwise provide access to the Personal Information to any third party outside of the terms of Service Agreement.
- The Operator will limit access to the Personal Information only to those employees to whom access is necessary to perform their role in the performance of the Service Agreement and then only on a need to know basis, and will ensure that such employees are subject to confidentiality obligations, comply with this Agreement and have the necessary skills and training.
- If the Operator subcontracts any of its obligations under the Service Agreement or otherwise appoints a third party to Process Personal Information ("Subcontractor"), the Operator will ensure that, prior to the Processing taking place, there is a written contract in place between the Operator and the Subcontractor that imposes on the Subcontractor the same terms as those imposed on the Operator in this Agreement. The Operator will procure that the Subcontractor will perform all obligations set out in this Agreement and the Operator will remain responsible and liable to the Responsible Party for all acts and omissions of Subcontractor as if they were its own. The Operator may only appoint a subcontractor with the written consent of the Responsible Party.
- No Personal Information may be transferred outside the Republic of South Africa without the prior written consent of the Responsible Party.
- The Operator acknowledges and agrees that the Operator is responsible for the security and/or confidentiality of Personal Information that it stores, processes, or transmits on behalf of the Responsible Party, or to the extent that it could impact the security and/or confidentiality of the Responsible Party's Personal Information data environment.
- The Operator warrants that it will secure the integrity and confidentiality of the Personal Information by taking appropriate, reasonable technical and organisational measures to prevent:
 - loss of, or damage to, or unauthorised destruction of the Personal Information; and
 - unlawful access to, or Processing of, the Personal Information.
- The Operator will take reasonable measures to:
 - identify internal and external risks to the Personal Information;
 - establish and maintain appropriate safeguards against the risks identified;
 - ensure that the safeguards are regularly checked, continually updated in respect of new risks or deficiencies in previously implemented safeguards;
- The Operator will comply with best industry practices.

4. SECURITY BREACH

The Operator shall immediately notify the Responsible Party in writing, on becoming aware, or if there are reasonable grounds to believe, that a security breach has or is likely to occur including:

- the nature of the security breach;
- the approximate number of Data Subjects affected;
- measure taken to address the security breach;
- any other relevant information;

5. BREACH OF AGREEMENT

If the Responsible Party determines, at its sole discretion, that the Operator has committed a material breach of this Agreement and/or POPIA, the Responsible Party may:

- Allow the Operator to correct the breach within the time frame specified by the Responsible Party; or
- immediately terminate this Agreement where a material term of this Agreement has been breached and the Responsible Party determines in its sole discretion that the material breach is not capable of being remedied.

6. TERMINATION OF AGREEMENT

As determined by the Responsible Party, securely delete or return to the Responsible Party all Personal Information promptly upon the termination (for any reason) of the Service Agreement or at any time upon request, and securely delete any remaining copies.

At the Responsible Party's request, the Operator shall confirm in writing all Personal Information in its or its subcontractors possession or control has been returned or destroyed. Any right that the Operator has to Process Personal Information will terminate immediately upon the termination of the Service Agreement.

Termination of this Agreement will not affect the provisions, which are intended to continue to have effect and apply after termination.

7. DISPUTES

If the event of any unresolved dispute between the Parties arising out of or in connection with this Agreement, including, its existence, application, breach, interpretation, validity, termination or cancellation, the Parties agree first to attempt to resolve the dispute informally by negotiation, and as far as possible avoid any formal dispute resolution process. Any attempt to resolve the dispute informally shall last no longer than 14 (fourteen) days, commencing on the date that the dispute is first declared by formal written notice delivered by either Party to the other. If the dispute is not so resolved, it shall be submitted to and decided by arbitration in terms of the Arbitration Act, 42 of 1965, subject to the following provisions:

- The arbitrator shall be appointed by the parties, and failing agreement, shall be nominated by the Arbitration Foundation of Southern Africa ("AFSA"). Should AFSA not be in existence at the time, the nomination shall be by the Chairman for the time being of the Johannesburg Bar Council.
- The arbitration shall be held at a venue to be agreed between the Parties to the dispute which is the subject of the arbitration.
- The arbitration shall be held in accordance with the Rules of AFSA, or if AFSA shall not be in existence, in accordance with the formalities and procedures settled by the arbitrator, which shall be in an informal and summary manner, that is, it shall not be necessary to observe or carry out either the usual formalities or procedure or the strict rules of evidence, and otherwise subject as aforesaid of the Arbitration Act, 1965 of the RSA and any statutory modification or re-enactment thereof.
- The arbitration shall be held as quickly as possible after it is demanded, with a view to it being completed within thirty days after it has been so demanded.
- This clause is severable from the rest of the agreement and shall therefore remain in effect even if this agreement is terminated.

8. WARRANTIES

The Parties agrees to indemnify, defend, and hold harmless the other party, and its directors, officers, employees and agents, against any and all losses, liabilities, damages, claims, fines, penalties, costs and expenses (including legal fees) arising out of or in connection with a breach by the offending party (or any of its employees or subcontractors) of this Agreement, non-compliance with POPIA and/or any unauthorised access, disclosure, or use of any Personal Information in the possession or under the control of the party.

9. GENERAL

If any provision of this Agreement is held invalid, illegal or unenforceable such provision shall be severed and the remainder of the provisions of this Agreement shall continue in full force and effect as if this Agreement had been executed with the invalid, illegal or unenforceable provision eliminated.

In the event and to the extent only of any conflict of provisions between this Agreement and the Service Agreement, the more stringent obligations will prevail.

This Agreement may only be amended, or any rights under it waived, by a written agreement executed by the Operator and the Responsible Party.

The term of this Agreement shall commence on the Effective Date hereof and continue so long as the Operator provides services under the Service Agreement or until terminated as provided for in this Agreement, whichever occurs first in time.

All notices to be given in terms of this Agreement shall be given in writing and shall be addressed and delivered as follows:

The Responsible Party, marked for the attention of the Information Officer –

Hand deliveries: Ambledown House, Eton Office Park East, c/o Sloane & Harrison Streets, Bryanston

Email: compliance@ambledown.co.za

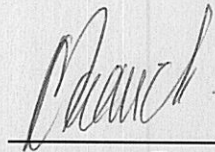
The Operator, marked for the attention of Scutech – Charlaine Marnewick

Hand deliveries: 34 and 36 Stokroos Avenue, Breaunanda, Krugersdorp

Email: charlaine@scutech.net

A party shall be entitled to change its address by giving not less than seven (7) days' written notice thereof to the other party.

Signed at Krugersdorp on the 06th day of March 2023.
For and on behalf of
(the Operator)



Name: Charlene Marnewick

Capacity: Manager

Signed at _____ on the _____ day of _____ 2023.
For and on behalf of
Ambledown Financial Services (Pty) Ltd (the Responsible Party)

Name:

Capacity: